During the next three weeks, we were permitted to spend our days together preparing our case. I was now among my fellow accused, and the company of my colleagues was a tonic. As awaiting-trial prisoners we were entitled to two half-hour visits a week, and one meal a day could be sent in from the outside. I soon gained back my lost weight with Mrs. Pillay's delicious dinners.

While we were preparing our defense, the government was trying the case in the newspapers. Normally, a case that is sub judice cannot be commented upon in public or in the press. But since the men arrested at Rivonia were Ninety-Day detainees, and therefore not technically charged with a crime, this judicial principle went by the wayside. We were publicly branded as violent revolutionaries by everyone from the minister of justice on down. Newspapers regularly featured headlines like "REVOLUTION ON MILITARY BASIS."

On October 29, we again entered the Palace of Justice; again the crowds were large and excited; again the security was extremely tight; again the court was filled with dignitaries from many foreign embassies. After three weeks with my comrades I felt rejuvenated, and I was far more comfortable in court this time in a suit. Our attorneys had objected to our having to come to court in prison garb and we had won the right to wear our own clothes. We again raised clenched fists to the gallery, and were warned that if we did it again, we would be forced to come to court in our prison khakis. To prevent such outbursts, the authorities reversed the normal order of the prisoners preceding the judge into the courtroom. After that first day, the judge entered first so that court would already be in session when we entered.

We went on the attack immediately — Bram Fischer criticized the state's indictment as shoddy, poorly drawn, and containing absurdities such as the allegation that I had participated in certain acts of sabotage on dates when I was in Pretoria Local. Yutar was flummoxed. Judge de Wet looked to him to reply to Bram's argument, and instead of offering particulars he began to give what the judge derided as "a political speech." De Wet was impatient with Yutar's fumbling and told him so. "The whole basis of your argument as I understand it, Mr. Yutar, is that you are satisfied that the accused are guilty." De Wet then quashed the indictment and gaveled the session to a close.